

Legal Review Brief — School Sport Portal

Client: Luck Dragon Pty Ltd (ABN 64 697 434 898) **Contact:** Patrick Gallivan, Director · pgallivan@outlook.com · Williamstown VIC 3016 **Date:** 5 May 2026

What I’m asking you to review

I run a SaaS business selling cloud sport-administration software to Australian primary and secondary schools. Three product lines:

1. **School Sport Portal** (schoolsportportal.com.au) — main SaaS, \$1/student/year inc GST.
2. **Carnival Timing** (carnivaltiming.com) — race-day timing app, \$49 per carnival or \$149/year inc GST.
3. **SportCarnival** (sportcarnival.com.au) — public carnival results pages, currently free.

I’m about to start signing schools. **Before the first one signs, I need a senior solicitor to review my contract stack** and tell me what’s wrong, what’s risky, and what’s unenforceable.

Scope (in priority order)

1. **Data Processing Agreement (DPA)** — the contract that the school signs. Primary review.
2. **Terms of Service** — the consumer-facing terms covering use, payment, refunds, liability.
3. **Privacy Policy** — public-facing data practices statement.
4. **Parental Consent template** — for context only; schools customise it on their letterhead.
5. **Privacy Impact Assessment** — for context only; provided to schools on request.

Specific questions

About the DPA (primary)

1. **Controller / processor framing** — I drafted this with the school as data controller and Luck Dragon as data processor. For Victorian DET schools, the *DET itself* is technically the controller. Does my framing still work, or do I need a different version for DET vs Catholic/independent? Should there be a third party (DET) acknowledged as ultimate controller?
2. **Limitation of liability (s 13)** — capped at “amounts paid in 12 months”. For a \$1/student/year school, that’s ~\$400. Is that enforceable in Australia for a data-related claim? Should I carry more risk via insurance instead (currently planning Cyber Liability \$1M + PI \$2M via BizCover)?
3. **Sub-processor changes (s 7)** — 30 days’ written notice, opt-out termination. Is “30 days” market-standard, or do AU schools expect 60? What’s the exposure if I add a sub-processor without notifying?
4. **Data breach notification (s 8)** — 72 hours, mirrors NDB requirements. Is the 72h commitment realistic and enforceable? What’s the standard wording?
5. **Audit rights (s 12)** — once per 12 months, 30 days’ notice, school’s cost. Is this reasonable, or do schools expect more?
6. **Return + deletion of data (s 11)** — 14 days export + 30 days delete. Adequate?
7. **Cross-border processing (s 10)** — primary in AU; some sub-processors (Resend US, GitHub US for code) hold non-customer data. Sufficient disclosure?

About the ToS

8. **Refund policy (s 3)** — change-of-mind refund window 14 days for annual, none for per-carnival once code used. Workable under Australian Consumer Law?
9. **GST + tax invoice clause (s 3)** — I'm now GST-registered (effective 23 April 2026). Stripe issues tax invoices automatically. Is the new wording in s 3 (“All prices are in AUD and include 10% GST. Luck Dragon is registered for GST...”) accurate and complete?
10. **Limitation of liability (s 10)** — capped to amounts paid in 12 months OR \$100. Reasonable, or undermined by ACL guarantees that can't be excluded?
11. **Service availability (s 8)** — no SLA stated. Is this a problem, or is it standard for SaaS at this stage?
12. **Acceptable use (s 5)** — broad enough? Specific enough?
13. **IP assignment (s 9)** — student data remains property of school. Software remains mine. Is the wording clean?

About the Privacy Policy

14. **APP compliance** — I claim alignment with APPs 1-13. Specifically:
 - APP 8 (cross-border): I have a sub-processor list. Sufficient?
 - APP 11 (security): “encryption at rest + in transit, MFA available”. Defensible?
 - APP 12 (access): self-service via admin. Adequate?
15. **Children's privacy (s 8)** — I claim “students do not create accounts; data entered by authorised school staff”. Is that enough to discharge my obligations under APPs for a child-data-handling SaaS?

About parental consent

16. **Default consent model** — I default to “first name + surname-initial” public publication. Schools opt UP to “full surname for representative-level only” or DOWN to “no public publication”. Is this defensible without explicit parental opt-in for the default?

What I have done already

- [DONE] ABN + Pty Ltd + GST registration verified active
- [DONE] Trademark search confirmed names clear (about to register School Sport Portal class 42)
- [DONE] Stripe Tax registration active for AU
- [DONE] DKIM/SPF/DMARC DNS records configured for transactional email
- [DONE] Privacy by design — first-name + surname-initial default, opt-in publication, MFA available, encrypted at rest, AU residency
- [TODO] Cyber + PI insurance — applying via BizCover this week

What I want from you

A **flat-fee review with marked-up versions of all 5 documents and a short cover letter** flagging anything risky. Ideally returned within 5 business days.

If you think I need more than a fixed-fee review — e.g. structural rewrite of the DPA, or a separate AU-specific version vs an international version — please scope and quote that separately.

Live URLs (for context)

- <https://schoolsportportal.com.au> — homepage + pricing
- <https://schoolsportportal.com.au/privacy>
- <https://schoolsportportal.com.au/terms>
- <https://carnivaltiming.com/privacy>
- <https://carnivaltiming.com/terms>
- <https://sportcarnival.com.au/privacy>
- <https://sportcarnival.com.au/terms>
- <https://schoolsportportal.com.au/williamstownprimary> — example school portal
- <https://schoolsportportal.com.au/demo-school> — public demo

Attachments

1. DATA_PROCESSING_AGREEMENT.pdf (10 pages)
2. TERMS_OF_SERVICE.pdf (6 pages, scraped from live site)
3. PRIVACY_POLICY.pdf (5 pages, scraped from live site)
4. PARENTAL_CONSENT.docx (editable Word template)
5. PRIVACY_IMPACT_ASSESSMENT.pdf (8 pages, for context only)

Budget

I'm targeting **\$300–\$800 inclusive** for this review. Recommended providers I'm considering: - LawPath flat-fee SaaS contract review (~\$300) - LegalVision (~\$500) - Sprintlaw (~\$650)

Happy to pay more if the scope warrants.

Patrick Gallivan Luck Dragon Pty Ltd ABN 64 697 434 898